

24STCV33624 24STCV33624

County: los-angeles
Division: Civil Law and Motion
Department: 14
Hearing date: 2026-07-08
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Case Number: 24STCV33624 Hearing Date: July 8, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

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MELISSA HINOJOSA and JOSE HINOJOSA-TORRES,

Plaintiffs,

v.

BAYER CONSUMER CARE HOLDINGS LLC, et al.

Defendants.

Case No. 24STCV33624

Hearing Date: July 8, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

DEFENDANTS MERCK & CO., INC. AND BAYER
HEALTHCARE LLC'S MOTION TO COMPEL GENETIC AND GENOMIC TESTING

I.

Background

On December 19, 2024, Plaintiffs Melissa Hinojosa and Jose Hinojosa-Torres filed their complaint for personal injury alleging that Ms. Hinojosa developed malignant mesothelioma from direct exposure to asbestos-contaminated talcum powder products which she used from the early 1980s to the late 1990s.

On June

12, 2026, Defendants Merck & Co., Inc. ("Merck") and Bayer Healthcare, LLC ("Bayer") (collectively "Moving Defendants") moved to compel genetic and genomic testing, arguing genetic testing is necessary for Moving Defendants to evaluate whether there is an alternative causation argument based on germline genetic mutations.

On June

24, 2026, Plaintiffs opposed, arguing that the proposed testing invades Plaintiffs' constitutionally protected privacy rights and that Moving Defendants failed to show good cause exists to perform the testing.

On July

1, 2026, Moving Defendants replied, arguing that their interests in taking the genetic testing outweigh Plaintiffs' privacy concerns because results of the genetic testing are directly relevant to the issue of causation.

Moving

Defendants failed to show that the proposed genetic testing is essential to their defenses and that they have a compelling interest in discovering Ms. Hinojosa's genetic information. Ms. Hinojosa's prior genetic testing already ruled out a BAP1 mutation and discovering other genetic mutations would not absolve Moving Defendants of liability. Moving Defendants fail to justify further genetic testing. The motion to compel genetic and genomic testing is denied.

II.

Discussion

A.

Legal Standard

“Any party may obtain discovery, subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by means of a physical or mental examination of (1) a party to the action, (2) an agent of any party, or (3) a natural person in the custody or under the legal control of a party, in any action in which the mental or physical condition (including the blood group) of that party or other person is in controversy in the action.” (Code Civ. Proc., § 2032.020, subd. (a).)

“(a) In any case in which a plaintiff is seeking recovery for personal injuries, any defendant may demand one physical examination of the plaintiff, if both of the following conditions are satisfied: (1) The examination does not include any diagnostic test or procedure that is painful, protracted, or intrusive. (2) The examination is conducted at a location within 75 miles of the residence of the examinee.” (Code Civ. Proc., § 2032.220, subd. (a).) If a plaintiff thereafter fails to serve a timely response to it, the defendant may move for an order compelling a response and compliance with the demand for a physical examination. (Code Civ. Proc., § 2032.240, subd. (a), (b).) If a defendant deems that any modification to a demand for physical examination or any refusal to the demand is unwarranted, the defendant may move for an order compelling compliance with the demand. (Code Civ. Proc., § 2032.250.)

“If any party desires to obtain discovery by a physical examination other than that described in Article 2 (commencing with Section 2032.210), or by a mental examination, the party shall obtain leave of court.” (Code Civ. Proc., § 2032.310, subd. (a).) A motion for an examination under subdivision (a) shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination. The motion shall be accompanied by a meet and confer declaration under Section 2016.040. (Id., § 2032.220, subd. (b).)

A “plaintiff is not compelled, as a condition to entering the courtroom,

to discard entirely her mantle of privacy. At the same time, [a] plaintiff cannot be allowed to make her very serious allegations without affording defendants an opportunity to put their truth to the test.” (Vinson v. Superior Court (1987) 43 Cal.3d 833, 842.) An “implicit waiver of a party’s constitutional rights encompasses only discovery directly relevant to the plaintiff’s claim and essential to the fair resolution of the lawsuit.” (Vinson, supra, 43 Cal.3d at p. 842, citing Britt v. Superior Court (1978) 20 Cal.3d 844, 859.)

When evaluating invasions of the right to privacy in discovery, the party asserting a privacy right must establish “(1) a legally protected privacy interest; (2) a reasonable expectation of privacy in the circumstances; and (3) conduct by defendant constituting a serious invasion of privacy.” (Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 48.) A responding party may prevail by negating any of these three elements “or by pleading and proving, as an affirmative defense, that the invasion of privacy is justified because it substantively furthers one or more countervailing interests.” (Id.) “[T]he party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 533.) A court then balances these competing considerations. (Id.) “[O]bvious invasions of interest fundamental to personal autonomy must be supported by a compelling interest.” (Id. at p.557.) When lesser interests are at stake, “the strength of the countervailing interest sufficient to warrant disclosure of private information var[ies] according to the strength of the privacy interest itself, the seriousness of the invasion, and the availability of alternatives and protective measures.” (Id. at p.556.)

B.

Analysis

Moving

Defendants move to compel Ms. Hinojosa to submit to germline genetic testing of a blood sample, gene fusion analysis, and comprehensive genomic profiling of her tumor tissue. Moving Defendants seek the genetic testing to discover whether Ms. Hinojosa possesses genetic anomalies that can cause mesothelioma without asbestos exposure. (Motion at p.2.) Moving Defendants argue that this information is relevant to the issue of causation. (Id. at p.4.)

a.

Procedural Issues

Plaintiffs

argue that this motion is procedurally improper because it is untimely, citing an order from another matter, *Sorgi v. Barretts Minerals, et al.* 23STCV23360, denying a motion to compel genetic testing in part because the moving party delayed bringing its motion until three weeks before trial. (Opp. at pp.5-6.) Orders from other matters are irrelevant to this motion. This motion is timely because it was filed on June 12, 2026, before the discovery cutoff date and early enough for the motion to be heard before trial. Although Moving Defendants bring the motion at a late stage in litigation, the motion is timely.

Plaintiffs

also argue that the motion is procedurally improper because Moving Defendants never served a demand for examination under Code of Civil Procedure, section 2032.220. (Opp. at pp.7-8.) Plaintiffs argue that even if the motion is construed as a motion to compel under Code of Civil Procedure, section 2032.310, the motion is still procedurally improper because it fails to state the time, place, manner, conditions, scope, and nature of the examination. (Id.) In reply, Moving Defendants argue that a formal demand was not required because they requested testing of already-extracted tumor tissue and because Plaintiffs refused to agree to any blood draw or testing. (Reply at p.9.)

Moving

Defendants were required to make a formal demand for examination because they made this motion under Code of Civil Procedure, section 2032.020. Demands made under this section and the response to it are not to be filed with the court. (Code Civ. Proc., § 2032.26, subd. (a).) A defendant may move to compel a plaintiff's compliance with a demand for medical examination, but only after serving a formal demand and receiving no response or an unwarranted response modifying or refusing to comply with the demand. (Code Civ. Proc., §§ 2032.240, 2032.250.) Here, this motion is procedurally improper because Moving Defendants failed to make a formal demand for a medical examination.

Moving

Defendants argue on reply that they sought a court order permitting genetic testing "in an abundance of caution," implying that they made this motion under Code of Civil Procedure, section 2032.220, subdivision (a) because the proposed genetic testing exceeded the testing permitted under Code of Civil Procedure,

section 2032.220. However, Moving Defendants failed to cite Code of Civil Procedure, section 2032.220 in their moving papers and failed to provide the time, place, manner, scope, and nature of the examination with the moving papers as required by Code of Civil Procedure, section 2032.220, subdivision (b). The motion is thus procedurally improper even if Moving Defendants moved under Code of Civil Procedure, section 2032.220.

Plaintiffs

also argue that the motion was not served with proper notice because Moving Defendants served the notice electronically and should have added two days to the notice period. (Opp. at p.8, citing Code Civ. Proc., §§ 1005, subd.(b), 1010.6, subd. (a)(3)(B).) Plaintiffs also argue that Moving Defendants failed to follow this department's policies because Moving Defendants declined a request for an IDC because the earliest date available was too close to the current trial date. These defects are not fatal to the motion. Plaintiffs served a substantive opposition despite the service defect. Although Moving Defendant failed to request an IDC, the court will exercise its discretion to hear this motion.

This

motion is procedurally improper because Moving Defendants failed to make a formal demand for medical inspection and failed to state the time, place, manner, scope, and nature of the examination in their moving papers. Even if the motion was procedurally proper, Moving Defendants failed to show that the requested genetic testing was essential to their defenses.

b.

Plaintiff's Privacy Interest

Plaintiffs argue

that the genetic testing is a significant invasion of their right to privacy. As a threshold issue, the court must first determine whether Plaintiffs established (1) a legally protected privacy interest; (2) a reasonable expectation of privacy in the circumstances; and (3) conduct by defendant constituting a serious invasion of privacy. (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 48.) The California Constitution protects an individual's reasonable expectation of privacy against serious invasion. (Cal. Const., art. I, § 1.) California courts have ruled that a person has a strong privacy interest in his DNA profile and genetic information. (*County of San Diego v. Mason* (2012) 209 Cal.App.4th 376, 381.) A privacy interest may be "abridged

for a compelling opposing interest where laws are in place to limit use of the DNA to a specific purpose to satisfy that interest.” (Ibid.) In other words, the standard is high for a court to order discovery of the genetic information contained in DNA. Such an order must be supported by a compelling interest and limited to a specific purpose to satisfy that interest. Individuals have a strong, legally protected privacy interest in their DNA and genetic information. Persons also have a reasonable expectation of privacy of such sensitive information. The proposed genetic testing here would constitute a serious invasion of this privacy interest because Moving Defendants seek broad genetic testing of both her blood and tissue. Because Moving Defendants’ proposed genetic testing is a serious invasion of Plaintiff’s legally protected privacy interests, it must be supported by a compelling interest.

The court turns to whether the proposed genetic testing is essential to Moving Defendant’s defenses. (Vinson, *supra*, 43 Cal.3d at p. 842, citing *Britt v. Superior Court* (1978) 20 Cal.3d 844, 859.) The strength of Moving Defendants’ interest in discovering the requested genetic information will depend on the strength of Plaintiffs’ privacy interest, the seriousness of the invasion, and the availability of alternatives and protective measures. (Williams, *supra*, 3 Cal.5th at p.556.)

As discussed, Plaintiffs have a strong privacy interest in their genetic information requiring a compelling interest to justify discovery. Additionally, the intrusion into Plaintiffs’ privacy is significant because the proposed genetic testing is broad, encompassing germline genetic testing of a blood sample, gene fusion analysis, and comprehensive genomic profiling of Ms. Hinojosa’s tumors. Although drawing Ms. Hinojosa’s blood and testing already-excised tumor tissue are minor procedures, the genetic testing would reveal information about Ms. Hinojosa’s health and possibly the health of her family members. Accordingly, Moving Defendants must show a compelling countervailing interest sufficient to warrant disclosure. The court notes that Moving Defendants submitted a proposed protective order which calls for a first look procedure, destruction of remaining samples and data, and prohibitions on the use of the test results for research and publication. However, even if Moving Defendants proposed a protective order, the broad genetic testing would still significantly infringe on Plaintiffs’ privacy if Moving Defendants are permitted to discover information about Plaintiffs’

genetic information that is not essential to their defenses.

The Moving Parties show that the genetic information may be probative, but fail to show it is essential. Moving Defendants' expert, Dr. Scott Tomlins, opines that genetic and genomic testing would be probative in determining the cause of her mesothelioma because she possesses clinicopathological and hereditary cancer predisposition features that place her at increased likelihood of having a non-asbestos caused mesothelioma subtype because she lacks occupational asbestos exposure, she is female, she developed mesothelioma at an early age, she developed non-pleural epithelioid mesothelioma, she has a favorable prognosis, and she has a family history of early-onset testicular cancer. (Tomlins Decl. at ¶24.) Dr. Tomlins identified mutations in high penetrance genes which cause a high proportion of carriers to develop cancer, including BRCA1, BRCA2, MLH1, MSH2, TP53, and BAP1, and other mutations that cause a moderate proportion of carriers to develop cancer. (Id. at ¶31, 38.) Dr. Tomlins also points to a few case studies where individuals developed mesothelioma despite having no history of asbestos exposure. (Id. at ¶¶43-44.) BAP1 specifically "is characterized by a 1000s of fold higher lifetime risk of mesothelioma development." (Id.) Dr. Tomlin points out that recent studies show up to 50% of mesothelioma patients younger than 55 carried the BAP1 mutation and had no evidence of professional asbestos exposure. (Id. at ¶35.) Mr. Tomlin cites other scholarly articles showing that other high penetrance genes (BRCA1, BRCA2, MLH1, MLH2, and TP53) were associated with mesothelioma development. (Id. at ¶41.) Dr. Tomlins opines that heritable germline mutations can be an independent cause of mesothelioma in the absence of asbestos exposure beyond background levels. (Id. at ¶51.)

Ms. Hinojosa underwent whole-exome sequencing-based genetic testing of her blood and tumor tissue which did not cover cancer predisposition-related genetic variants. (Tomlins Decl. at ¶12.) However, testing revealed intact BAP1 expression, excluding the possibility that she has a BAP1 mutation. (Id. at ¶35.)

Moving Defendants fail to show that genetic testing is essential to their defenses. Dr. Tomlins's declaration provides evidence for an opinion that carriers of the BAP1 gene mutation can develop mesothelioma without exposure to asbestos. However, Ms. Hinojosa underwent genetic testing which ruled out this mutation. Dr. Tomlins's opinions and literature pertaining to other high penetrance mutations at most

state that these mutations lead to an increased risk of developing cancers including mesothelioma. However, a tortfeasor takes the injured person as he finds them. (*Rideau v. Los Angeles Transit Lines* (1954) 124 Cal.App.2d 466, 471 ["If, by reason of some preexisting condition, his victim is more susceptible to injury, the tort-feasor is not thereby exonerated from liability."].) In other words, mutations that lead to an increased risk of developing mesothelioma would not absolve Moving Defendants of liability. Unlike BAP1, which Tomlins claims can cause mesothelioma without asbestos exposure, the remaining mutations make carriers more susceptible to developing cancer but have not been shown to cause Ms. Hinojosa's mesothelioma independent of other factors. Because information about these other mutations would not absolve Moving Defendants of liability, their interest in discovering the information is diminished. The information about the other mutations is not essential to Moving Defendants' defenses. Moving Defendants also fail to show that they have a compelling interest in discovering Ms. Hinojosa's genetic information over her claim to genetic privacy.

On balance, the significant invasion of Plaintiffs' privacy interest posed by the genetic testing is unjustified by Moving Defendants' interest in discovering Plaintiffs' genetic information because the information is not essential to their defenses. Accordingly, the motion to compel genetic testing is denied.

III.

Conclusion

Moving

Defendants fail to show that the proposed genetic testing is essential to their defenses and that they have a compelling interest in discovering Ms. Hinojosa's genetic information. Ms. Hinojosa's prior genetic testing already ruled out a BAP1 mutation and discovering other genetic mutations would not absolve Moving Defendants of liability. The motion to compel genetic and genomic testing is denied.